

[1] SPECIAL MARRIAGE (KARNATAKA) RULES, 1961

PREAMBLE

In exercise of the powers conferred by Section 50 of the Special Marriage Act, 1954 (Central Act 43 of 1954), the Government of Karnataka hereby makes the following rules.-

Rule 1.

(1) These rules may be called the Special Marriage (Karnataka) Rules, 1961.

(2) They shall extend to the whole of the State of Karnataka.

Rule 2.

In these rules.-

(a) "Act" means the Special Marriage Act, 1954 (Central Act 43 of 1954);

(b) "Form" means a form appended to these rules;

(c) "Section" means a section of the Act.

Rule 3.

Every Marriage Officer shall cause his name, designation and the regular working hours of his office to be written in English and in Kannada and displayed in a conspicuous part of the building in which his office is situated.

Rule 4.

(1) Notice of any intended marriage under the Act shall be given in writing in the form specified in the Second Schedule to the Act, to the Marriage Officer by both the parties intending to enter into the marriage, either in person or by registered post..

(2) Where the notice is delivered in person, the fee prescribed there for in Rule 10 shall be paid directly in cash to the Marriage Officer. Where the notice is sent by registered post, the fee shall be remitted by money order at the remitter's expense and the receipt issued to the remitter by the post office through which the remittance is made shall be attached to the notice.

(3) As soon as the notice has been received by the Marriage Officer a distinctive serial number shall be entered on it and such number and the date of receipt of the notice shall be attested by the signature of the Marriage Officer. If the notice is in conformity with the requirements of the Act, it shall be entered in the marriage Notice Book which shall be a

bound volume, the pages of which are machine numbered consecutively, with a nominal index attached. If the notice is not in conformity with the requirements of the Act, it shall be got rectified by the parties if they are present or returned to them by post for rectification and retransmission within a date to be fixed. Every item of rectification shall be attested by both the parties.

- (4) The Marriage Officer may for purposes of satisfying himself that the parties to the intended marriage have attained the age specified in clause (c) of Section 4, require them to produce their Birth Certificate or other satisfactory evidence of age.
- (5) A true copy of the notice under the seal and signature of the Marriage Officer shall be exhibited in a conspicuous place in his office.

Rule 6.

- (1) Where an objection to the solemnization of an intended marriage together with the fee prescribed in Rule 10 has been received and recorded by the Marriage Officer, he shall, unless by an order in writing rejects the objection summarily on the ground that the objection is not based on contravention of any of the conditions specified in Section 4, enquire into the objection on a day to be fixed by him. The day so fixed shall not be later than thirty days from the date of the objection.
- (2) The Marriage Officer shall, at the time of recording the objection, ascertain from the objector whether he has any documents on which he relies or whether he desires any witness or witnesses to be examined on his behalf. If the objector states that he has, the Marriage Officer shall require the objector to produce the documents or the witnesses on the day fixed for the enquiry. If the objector desires that summons shall be issued to the witnesses to appear and give evidence or to produce any document, the Marriage Officer shall issue such summons to the witnesses cited, on payment of the process fee prescribed there for in Rule 10 and the reasonable expenses of travelling and subsistence allowance to the witnesses. The enquiry relating to the objection including the production of documents and the examination of witnesses shall be completed and the decision of the Marriage Officer arrived at within the period of thirty days specified in Section 8. If, within the prescribed period, the documents are not produced and the witnesses do not appear before the Marriage Officer, the Marriage Officer shall take a decision without waiting for the production of such documents or the appearance of such witnesses.
- (3) The Marriage Officer shall also give notice of the date and time fixed for the enquiry to the parties to the intended marriage.
- (4) The notice or summons to any party or witness under this rule shall be in Form I or Form II, as the case may be, and shall be sent by registered post.

- (5) On the date fixed for the enquiry or on any adjourned date, the Marriage Officer shall record in his own hand the evidence given in the course of the enquiry, his decision on the objection and the reasons there for.

Rule 7.

- (1) An application under Section 16 for the registration of a marriage celebrated in other forms shall be in Form III.
- (2) Such application shall be presented to the Marriage Officer by any one of the parties in person or sent to him by registered post.
- (3) Notice of the application under sub-rule (1) shall be given by the Marriage Officer by exhibiting a true copy thereof under his seal and signature in a conspicuous place outside his office. The notice also shall state that objections, if any, to the registration of the marriage should be preferred by the objector in person orally or in writing to the Marriage Officer within thirty days from the date on which the notice is exhibited.
- (4) Any objection received within the said period together with the fee prescribed there for in Rule 10 shall be recorded and the enquiry in respect thereto made as nearly as possible in the manner prescribed in Rule 6.

Rule 8.

The Marriage Officer may, on application by both the parties to the Marriage, solemnize the same at any place outside his Office, provided the additional fee prescribed there for in Rule 10 is paid and the hour is not unreasonable.

Rule 9.

The Marriage Certificate Book shall be a bound volume the pages of which are machine numbered consecutively with a nominal index attached. Every marriage certificate entered therein during each calendar year shall be consecutively numbered and every authenticated copy of a certificate issued to the parties shall bear the number and the date, month and year in which the certificate was entered.

Rule 10.

The following fees shall be levied by the Marriage Officer.-

	Rs.	nP.
(i) for every notice of intended marriage or application for the registration of a marriage (to be paid by the parties to the marriage)	3	00
(ii) for recording an objection (to be paid by the objector)	2	00
(iii) for every enquiry into an objection (to be paid by the objector)	50	00
(iv) for every notice and for every summons to a witness to appear and give evidence or produce a document (to be paid by the objector)	0	50
(v) for solemnizing or registering a marriage (to be paid by the parties to the marriage)	10	00
(vi) for a certified copy of an entry.-		
(a) in the Marriage Notice Book other than an entry relating to an objection; or	2	00
(b) in the Marriage Certificate Book (to be paid by the applicant)		
(vii) for a certified copy of an entry in the Marriage Notice Book other than a notice or of any other proceeding not already provided for (to be paid by the applicant)	2	00
(viii) for solemnizing a marriage at any place outside the office of the Marriage Officer, in addition to the fee in entry (v) to be paid by the parties to the marriage	15	00
Note.-This fee may be appropriated by the Marriage Officer. Notravelling allowance shall, however, be claimed in addition.		
(ix) for making a search (to be paid by the applicant).-	0	50
(a) if the entry is of the current year	1	00
(b) if the entry related to any previous year or years (for each such year)		

The fees prescribed above shall be paid either in person or remitted by money order to the Marriage Officer.

A receipt duly signed by the Marriage Officer shall be issued for all fees received by him under the Act and the rules. The receipt books shall be bound volumes of one hundred leaves each with foils and counterfoils which shall be machine numbered consecutively. All money received by the Marriage Officer except the fee mentioned in entry (viii) above shall be remitted into the local treasury.

Rule 11.

Copy of entries in the Marriage Certificate Book which Marriage Officers 'are required to send under Section 48 to the Registrar-General of Births, Deaths and Marriages shall be certified in Form IV and shall be sent at intervals of three months on, or as nearly as possible after the 1st of January, April, July and October in each year. If no entries have been made in the book during the preceding three months, a nil certificate shall be sent to the said Registrar-General.

Rule 12.

The Bombay Special Marriage Rules, 1955, as in force in the Bombay Area, the Coorg Special Marriage Rules, 1955, as in force in the Coorg District, the Hyderabad Special Marriage Rules, 1955, as in force in the Hyderabad Area, the Madras Special Marriage Rules, 1954, as in force in the Madras Area and the Mysore Special Marriage Rules, as in force in the Mysore Area, are hereby repealed:

Provided that the provisions of Section 6 of the General Clauses Act, 1897 (Central Act X of 1897), shall be applicable as regards the effect of the repeal of the said rules:

Provided further that anything done or any action taken under the said rules shall be deemed to have been done or taken under the corresponding provisions of these rules.

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